

STATE OF NEW YORK

1847--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 14, 2025

Introduced by M. of A. PHEFFER AMATO -- read once and referred to the Committee on Local Governments -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general municipal law, in relation to disabilities of members of the uniformed force of sanitation departments in certain cities

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The general municipal law is amended by adding a new
2 section 207-aa to read as follows:

3 § 207-aa. Disabilities of members of the uniformed force of sanitation
4 departments in certain cities. Notwithstanding the provisions of any
5 general, special or local law or administrative code to the contrary,
6 but except for the purposes of the workers' compensation law and the
7 labor law, any condition of impairment of health caused by leptospiro-
8 sis, resulting in total or partial disability or death to a paid member
9 of the uniformed force of a paid sanitation department, where such paid
10 member is drawn from competitive civil service lists, who successfully
11 passed a physical examination on entry into the service of such depart-
12 ment, which examination failed to reveal any evidence of such condition,
13 shall be presumptive evidence that it was incurred in the performance
14 and discharge of duty, unless the contrary be proved by competent
15 evidence.

16 § 2. This act shall take effect immediately.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

SUMMARY: The proposed legislation would provide Sanitation members of the New York City Employees' Retirement System (NYCERS) a rebuttable statutory presumption that a qualifying partial or total disability or death related to leptospirosis was incurred in the performance of duty.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD04231-03-5

ILLUSTRATION - INCREASE (DECREASE) IN EMPLOYER CONTRIBUTIONS
by Fiscal Year for the first 25 years (\$ in Thousands)

Year	One Incident		One Incident Per Year	
	Disability	Death	Disability	Death
2026	51	215	51	215
2027	51	215	104	437
2028	51	215	159	666
2029	51	215	215	901
2030	51	215	272	1,143
2031	51	215	332	1,393
2032	51	215	393	1,650
2033	51	215	456	1,915
2034	51	215	521	2,188
2035	51	215	588	2,469
2036	51	215	657	2,758
2037	51	215	728	3,056
2038	51	215	801	3,363
2039	51	215	876	3,680
2040	0	0	903	3,790
2041	0	0	930	3,904
2042	0	0	958	4,021
2043	0	0	986	4,142
2044	0	0	1,016	4,266
2045	0	0	1,046	4,394
2046	0	0	1,078	4,526
2047	0	0	1,110	4,661
2048	0	0	1,143	4,801
2049	0	0	1,178	4,945
2050	0	0	1,213	5,094

Employer contribution impact beyond Fiscal Year 2050 is not shown.

The potential increases in employer contributions will be allocated to New York City.

PRESENT VALUE OF BENEFITS: The Present Value of Benefits is the discounted expected value of benefits paid to current members if all assumptions are met, including future service accrual and pay increases. Future new hires are not included in this present value.

INITIAL INCREASE (DECREASE) IN ACTUARIAL PRESENT VALUES
as of June 30, 2024 (\$ in Thousands)

Present Value (PV)	Per Disability	Per Death
(1) PV of Employer Contributions:	434	1,821
(2) PV of Employee Contributions:	(17)	0
Total PV of Benefits (1) + (2):	417	1,821

UNFUNDED ACCRUED LIABILITY (UAL): Actuarial Accrued Liabilities are the portion of the Present Value of Benefits allocated to past service. Changes in UAL per incident would be recognized as ongoing gain/loss.

AMORTIZATION OF UNFUNDED ACCRUED LIABILITY

Recognized as Ongoing Gain/Loss	Per Disability	Per Death
Increase (Decrease) in UAL:	434 K	1,821 K

Number of Payments:	14	14
Amortization Payment:	51 K	215 K

CENSUS DATA: The number of members who will benefit in the future from this proposed legislation is unknown. The estimates presented herein are based on preliminary census data collected as of June 30, 2024. The census data for the potentially impacted population used to develop the average costs is summarized below.

NYCERS	
Active Members	
- Number Count:	8,018
- Average Age:	43.2
- Average Service:	11.1
- Average Salary:	107,800

IMPACT ON MEMBER BENEFITS: Currently, a NYCERS Sanitation member who becomes disabled due to leptospirosis would be eligible for an applicable ordinary disability retirement benefit, generally a lifetime payment of 1/3 of salary. The ordinary death benefit is a lump sum payment generally equal to three times the member's salary.

Under the proposed legislation, the performance of duty disability benefit for NYCERS Sanitation members who are disabled from leptospirosis would generally be equal to 75% of Final Average Salary.

Under the proposed legislation, the performance of duty death benefit would generally be equal to a lifetime benefit of 50% of a member's wages earned during their last year of service, plus, if applicable, the Special Accidental Death Benefit (SADB) payable under General Municipal Law section 208-f.

ASSUMPTIONS AND METHODS: The estimates presented herein have been calculated based on the Revised 2021 Actuarial Assumptions and Methods of the impacted retirement systems.

The number of members who will benefit from the proposed legislation is unknown. The cost of this proposed legislation could vary greatly depending on the number of future members who benefit and on their length of service, age, and salary history. In particular, the increase would be greater for a member who is not yet eligible for an Ordinary Disability Retirement benefit when disabled.

The estimated financial impact for disabled members has been calculated assuming 50% would have retired under the current ordinary disability benefit, and 50% would have continued working if the proposed legislation were not passed.

RISK AND UNCERTAINTY: The costs presented in this Fiscal Note depend highly on the actuarial assumptions, methods, and models used, demographics of the impacted population, and other factors such as investment, contribution, and other risks. If actual experience deviates from actuarial assumptions, the actual costs could differ from those presented herein. Quantifying these risks is beyond the scope of this Fiscal Note.

This Fiscal Note is intended to measure pension-related impacts and does not include other potential costs (e.g., administrative and Other Postemployment Benefits). This Fiscal Note does not reflect any chapter laws that may have been enacted during the current legislative session.

STATEMENT OF ACTUARIAL OPINION: Marek Tyszkiewicz and Gregory Zelikovsky are members of the Society of Actuaries and the American Academy of Actuaries. We are members of NYCERS, but do not believe it impairs our

objectivity, and we meet the Qualification Standards of the American Academy of Actuaries to render the actuarial opinion contained herein. To the best of our knowledge, the results contained herein have been prepared in accordance with generally accepted actuarial principles and procedures and with the Actuarial Standards of Practice issued by the Actuarial Standards Board.

FISCAL NOTE IDENTIFICATION: This Fiscal Note 2025-17 dated February 19, 2025 was prepared by the Chief Actuary for the New York City Retirement Systems and Pension Funds and is intended for use only during the 2025 Legislative Session.